

21STCV22503 21STCV22503

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-18

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Case Number: 21STCV22503 Hearing Date: August 18, 2026 Dept: N

TENTATIVE RULING

Plaintiff Tigran Hovanesyan's Motion to Compel Responses to Supplemental Interrogatory Directed to Daniel Croizat is DENIED as MOOT.

Plaintiff Tigran Hovanesyan's Motion to Compel Responses to Supplemental Demand for the Production of Documents Directed to Daniel Croizat is DENIED as MOOT.

Plaintiff Tigran Hovanesyan's Request for Monetary Sanctions is GRANTED in the amount of \$520, payable by Defendant Daniel Croizat and defense counsel to Plaintiff Tigran Hovanesyan and Plaintiff's counsel within thirty (30) days of entry of this order.

Plaintiff Tigran Hovanesyan to give notice.

Plaintiff Tigran Hovanesyan ("Plaintiff") served Defendant Daniel Croizat ("Defendant") with his Supplemental Interrogatory and Supplemental Demand for the Production of Documents on February 23, 2026. (Mots., Zador Decls. ¶ 2.) Responses were due on or before March 27, 2026, and Plaintiff's counsel also communicated with defense counsel to extend the response date to April 22, 2026, then May 11, 2026. (Mots., Zador Decls. ¶¶ 3-6.) As of the date of filing the motions, no responses had been received. (Mots., Zador Decls. ¶ 7.) However, responses and verifications have now been provided. Accordingly, Plaintiff Tigran Hovanesyan's Motion to Compel Responses to Supplemental Interrogatory Directed to Daniel Croizat is DENIED as MOOT, and Plaintiff Tigran Hovanesyan's Motion to Compel Responses to Supplemental Demand for the Production of Documents Directed to Daniel Croizat is DENIED as MOOT.

If a motion to compel responses to interrogatories or requests for production is filed, the Court shall impose a monetary sanction against the losing party "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c); 2031.300, subd. (c).) Further, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).) An order granting a request for monetary sanctions is proper where unsworn responses are provided. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff initially requested \$260 in monetary sanctions for each motion but later increased the amount in his replies. The Court finds that monetary sanctions are proper, but the Court declines to award any amount beyond what was requested in the notice of motion, as the motion made no indication that Plaintiff intended to seek further sanctions, and Code of Civil

Procedure section 2023.040 requires that a request for sanctions be included with the initial motion, i.e., it would be improper to increase the amount in the reply. Thus, Plaintiff Tigran Hovanesyan's Request for Monetary Sanctions is GRANTED in the amount of \$520, payable by Defendant Daniel Croizat and defense counsel to Plaintiff Tigran Hovanesyan and Plaintiff's counsel within thirty (30) days of entry of this order.